

An Act

ENROLLED HOUSE
BILL NO. 4324

By: Moore and McCane of the
House

and

Gollihare of the Senate

An Act relating to criminal procedure; amending 22 O.S. 2021, Section 982a, which relates to judicial review of sentences; authorizing district attorneys to adjust sentences; providing restrictions on adjustments; directing the district attorney to seek input from victims or representatives of victims; providing notification requirement; authorizing courts to consider certain postconviction factors; providing credit for time served; prohibiting sentence adjustments by district attorneys for certain persons; and providing an effective date.

SUBJECT: Criminal procedure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 982a, is amended to read as follows:

Section 982a. A. 1. Any time within sixty (60) months after the initial sentence is imposed or within sixty (60) months after probation has been revoked, the court imposing sentence or revocation of probation may modify such sentence or revocation by directing that another sentence be imposed, if the court is satisfied that the best interests of the public will not be jeopardized; provided, however, the court shall not impose a deferred sentence. Any application for sentence modification that is filed and ruled upon beyond twelve (12) months of the initial sentence being imposed must be approved by the district attorney who shall provide written notice to any victims in the case which is being considered for modification.

2. The court imposing sentence may modify the sentence of any offender who was originally sentenced for a drug charge and ordered to complete the Drug Offender Work Camp at the Bill Johnson Correctional Facility and direct that another sentence be imposed, if the court is satisfied that the best interests of the public will not be jeopardized; provided, however, the court shall not impose a deferred sentence. An application for sentence modification pursuant to this paragraph may be filed and ruled upon beyond the initial sixty-month time period provided for in paragraph 1 of this subsection.

3. This section shall not apply to convicted felons who have been in confinement in any state or federal prison system for any previous felony conviction during the ten-year period preceding the date that the sentence this section applies to was imposed. Further, without the consent of the district attorney, this section shall not apply to sentences imposed pursuant to a plea agreement or jury verdict.

B. The court imposing the sentence may modify the sentence of any offender sentenced to life without parole for an offense other than a violent crime, as enumerated in Section 571 of Title 57 of the Oklahoma Statutes, who has served at least ten (10) years of the sentence in the custody of the Department of Corrections upon a finding that the best interests of the public will not be jeopardized. Provided, however, prior to granting a sentence modification under the provisions of this subsection, the court shall provide notice of the hearing to determine sentence modification to the victim or representative of the victim and shall allow the victim or representative of the victim the opportunity to provide testimony at the hearing. The court shall consider the testimony of the victim or representative of the victim when rendering a decision to modify the sentence of an offender.

C. The district attorney responsible for the prosecution of an individual convicted of a crime may commence a proceeding to adjust the sentence of that individual at any time after the initial sentencing; provided, the district attorney does not seek to increase the period of confinement or, if the individual is serving a suspended sentence, increase the period of supervision.

1. Prior to filing a motion under the provisions of this subsection, the district attorney shall make a reasonable and good-faith effort to seek input from the victim or representative of the

victim and shall consider the effect that an adjusted sentence would have on the victim or representative of the victim. In compliance with the provisions of Section 34 of Article II of the Oklahoma Constitution, the district attorney shall also make a good-faith and reasonable effort to notify the victim or representative of the victim of the motion for resentencing, the date of the resentencing hearing, and the right of the victim or representative of the victim to be present at the hearing and to submit a statement.

2. At the hearing on the motion of the district attorney, the court may consider postconviction factors including, but not limited to:

- a. the disciplinary record of the inmate and record of rehabilitation of the inmate while incarcerated,
- b. evidence that reflects whether age, time served, or diminished physical condition have reduced the risk for future violence by the inmate, and
- c. evidence that circumstances have changed since the original sentencing of the inmate so that the continued incarceration of the inmate is no longer in the best interests of justice.

3. Credit shall be given to the inmate for any time served with the Department of Corrections on the charges before the court.

4. The provisions of this section shall not apply to any sentence imposed pursuant to a jury verdict, sentence of death, sentence of life without the possibility of parole, or any offense which results in the defendant being required to register as a sex offender pursuant to the Sex Offenders Registration Act.

D. For purposes of judicial review, upon court order or written request from the sentencing judge, the Department of Corrections shall provide the court imposing sentence or revocation of probation with a report to include a summary of the assessed needs of the offender, any progress made by the offender in addressing his or her assessed needs, and any other information the Department can supply on the offender. The court shall consider such reports when modifying the sentence or revocation of probation. The court shall allow the Department of Corrections at least twenty (20) days after receipt of a request or order from the court to prepare the required reports.

~~D.~~ E. If the court considers modification of the sentence or revocation of probation, a hearing shall be made in open court after receipt of the reports required in subsection ~~E~~ D of this section. The clerk of the court imposing sentence or revocation of probation shall give notice of the judicial review hearing to the Department of Corrections, the offender, the legal counsel of the offender, and the district attorney of the county in which the offender was convicted upon receipt of the reports. Such notice shall be mailed at least twenty-one (21) days prior to the hearing date and shall include a copy of the report and any other written information to be considered at the judicial review hearing.

~~E.~~ F. If an appeal is taken from the original sentence or from a revocation of probation which results in a modification of the sentence or modification to the revocation of probation of the offender, such sentence may be further modified in the manner described in paragraph 1 of subsection A of this section within sixty (60) months after the receipt by the clerk of the district court of the mandate from the Supreme Court or the Court of Criminal Appeals.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____